1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 8 - .18 New ship means aship: .1 for which the building contract is placed on or after 1 January 2013; or .2 in the absence of abuilding contract, the keel of which is laid or which is at asimilar stage of construction on or after 1 July 2013; or .3 the delivery of which is on or after 1 July 2015. .19 Non-conventional propulsion means amethod of propulsion, other than conventional propulsion, including diesel-electric propulsion, turbine propulsion, and hybrid propulsion systems. .20 Passenger ship means aship which carries more than 12 passengers. .21 Polar Code means the International Code for Ships Operating in Polar Waters, consisting of an introduction, parts I -Aand II -Aand parts I -Band II-B, as adopted by resolutions MSC.385(94) and MEPC.264(68), as may be amended, provided that: .1 amendments to the environment -related provisions of the - II-B, as adopted by resolutions MSC.385(94) and MEPC.264(68), as may be amended, provided that: .1 amendments to the environment -related provisions of the introduction and chapter 1 of part II-Aof the Polar Code are adopted, brought into force and take effect in accordance with the provisions of article 16 of the present Convention concerning the amend ment procedures applicable to an appendix to an annex; and .2 amendments to part II -Bof the Polar Code are adopted by the Marine Environment Protection Committee in accordance with its Rules of Procedure. .22 Refrigerated cargo carrier means aship designed exclusively for the carriage of refrigerated cargoes in holds. .23 Required annual operational CII is the target value of attained annual operational CII in accordance with regulations 26 and 28 of this Annex for the specific ship type and size. .24 Required EEDI is the maximum value of attained EEDI that is allowed by - operational CII in accordance with regulations 26 and 28 of this Annex for the specific ship type and size. .24 Required EEDI is the maximum value of attained EEDI that is allowed by regulation 24 of this Annex for the specific ship type and size. .25 Required EEXI is the maximum value of attained EEXI that is allowed by regulation 25 of this Annex for the specific ship type and size. .26 Ro-ro cargo ship means aship designed for the carriage of roll -on-roll-off cargo transportation units. .27 Ro-ro cargo ship (vehicle carrier) means amulti-deck roll-on-roll-off cargo ship designed for the carriage of empty cars and trucks. .28 Ro-ro passenger ship means apassenger ship with roll -on-roll-off cargo spaces. RESOLUTION MEPC.328(76) AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 9 - - AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 9 - .29 Tanker means an oil tanker as defined in regulation 1 of Annex Iof the present Convention or achemical tanker or an NLS tanker as defined in regulation 1 of Annex II to the present Convention. Regulation 3 Exceptions and exemptions General 1 Regulations of this Annex shall not apply to: .1 any emission necessary for the purpose of securing the safety of aship or saving life at sea; or .2 any emission resulting from damage to aship or its equipment: .2.1 provided that all reasonable precautions have been taken after the occurrence of the damage or discovery of the emission for the purpose of preventing or minimizing the emission; and .2.2 except if the owner or the master acted either with intent to cause ---CH